Forum: Legal Committee (GA6)

Issue: Clarifying the limits of self-defense under the UN Charter in contemporary conflicts

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Personal Introduction

Dear delegates,

My name is Adrianos Prineas, I'm 17 years old, and I'm a student of Pierce-ACG. In this year's MOMUN conference, I have the honour of serving as a Co-Chair in GA6 under the theme "Equity in an uneducated world". This will be my 9th conference and also my third time serving as a student officer. I'm really excited to share this experience with you!

First of all, I would like to congratulate you all for deciding to attend this conference and I wish everyone an overall pleasant experience, with long-lasting connections, memories and constructive dialogue. I wholeheartedly encourage you to try and participate as much as possible in all parts of this conference and to learn many new things, while trying to make the most out of this experience.

This study guide contains useful information about one of the four topics we're discussing in this committee that will help you understand the topic in most of its aspects in general. However, individual research is highly encouraged, especially when it comes to things such as understanding your delegation's policies and stances.

For anything you may need, whether it's a question or general feedback, please do not hesitate at all to contact me via email (a.prineas@acg.edu).

Wish you all the best!

Introduction

Self-defense is one of the most crucial terms in international relations and international law. Since its appearance, it has played a significant role in numerous situations and conflicts. However, there has been great disparity over the years regarding the definition, nature and limits of a nation's self-defense. The problem has always been the same: where does self-defense begin and end? Who gets to determine what is (and what is not) self-defense? That is where the United Nations (UN) steps in. Being a significant international organisation, the UN gets to play a role in defining self-defense, as it does with other terms. In fact, the right of self-defense is recognised in Article 51 of the UN Charter.[1] Nevertheless, as this guide will explain later on, everything that is happening in the world today and all kinds of conflicts until now have really stressed its importance. It is obvious that the term needs to be clarified and re-evaluated by the international community, as it is always facing challenges regarding its content. This topic is also closely linked to this year's conference theme "Equity in an uneducated world", as understanding and establishing terms of international law that were created to protect everyone equally (such as the term "self-defense") is a very important step towards equity.

Key Terms and Definitions

Anticipatory Self-Defense

This term refers to "the right to resort to force for the purpose of self-defence before an armed attack has taken place or in order to prevent a potential attack".[2] This is important to this topic, as anticipatory self-defense does not abide by the standard of timing of defense and remains an unclarified area in international law.

Armed Conflict

(International) "Armed conflicts (IACs) are fought between two or more States. An IAC includes any resort to armed force between States, declared wars, and the military occupation of another State without its valid consent, even if it is not met with armed resistance." [3] An

[1] United Nations. (n.d.). *Repertory of practice of United Nations organs: Article 51 (self-defence)*. https://legal.un.org/repertory/art51.shtml

[2] Association of Accredited Public Policy Advocates to the European Union. (2025, June 19). *Anticipatory self-defense/pre-emptive self-defense*. https://www.aalep.eu/anticipatory-self-defensepre-emptive-self-defense

[3] Geneva Academy. (2025). *International armed conflicts*. War Watch. https://warwatch.ch/legal-explainer/international-armed-conflicts/

armed attack can trigger the right of self-defense even when no wider armed conflict has yet developed.

Forward Defense

Forward defence (or defence-in-depth) is the "conventional deterrence strategy used in regional military strategies. It can be defined as the positioning of forces closer to the possible contact line aiming not to allow the adversary's forces to enter your territory. It is aimed at neutralising the threats before they reach the border."[4] Forward defense is not automatically lawful self-defense; its legality depends on the circumstances and the applicable rules on the use of force.

Necessity of Force

Military necessity concerns the conduct of hostilities under international humanitarian law. The separate necessity requirement for self-defense limits force to what is needed to repel or prevent an armed attack.[5]

Right of Self-Defense

According to Article 51 of the UN Charter, this term refers to "the inherent right of individual or collective self-defense if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security."[6]

Right of Self-Preservation

"Self-preservation refers to a unilateral action by a State in response to a compelling need to preserve the State in one form or another."[7] This is important to the term because the "right to self-preservation" has a significant role when states defend their right to self-defense.

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[4]Bílková, V. (2021). *The classification of armed conflicts in international law*. *Lithuanian Annual Strategic Review, 19*, 31–58. https://journals.lka.lt/journal/lasr/article/2278/file/pdf

[5]Dinstein, Y. (2011). *War, international*. In *Max Planck Encyclopedia of Public International Law*. Oxford University Press. https://opil.ouplaw.com/display/10.1093/law:epil/9780199231690/law-9780199231690-e333

[6]United Nations. (n.d.). *Repertory of practice of United Nations organs: Article 51 (self-defence)*. https://legal.un.org/repertory/art51.shtml

[7] In R. Wolfrum (Ed.), *Max Planck Encyclopedia of Public International Law*. Oxford University Press. https://opil.ouplaw.com/display/10.1093/law:epil/9780199231690/law-9780199231690-e403

Background Information

Historical Background

Since antiquity, the right to conduct war was often treated as a prerogative of states and centres of power. As a result, the term "self-defence" did not have that much gravity, as it was not needed as a means of legitimizing a state's actions. In reality, there have always been rules in warfare and "self-defense" has been a recognized and valued factor in international relations. However, it did not have the legal essence it has today, nor was it enough to shape the dynamics of conflicts or other situations. Instead, the "right of self-preservation" as a part of the law of nature was prioritized in conflicts.

With this being the status quo, it was in the 19th and early 20th centuries that things started changing. Throughout the overall developments and events of this era, such as numerous revolutions, armed conflicts and shifts in international relations, the need for the development of a legal framework regarding self-defense grew bigger. The first major event where the term's significance was realized was the "Caroline Incident" in 1837.[8] This diplomatic episode between Canadian revolutionaries, British authorities, and the US government set some of the first basic standards for the term "self-defense", being the first major diplomatic episode where this term was necessary.[9] After that, with international law, rights and obligations of states, and diplomacy developing, this term started being conceptualized. After WW1, with the establishment of the League of Nations,[10] the foundations were laid for something greater, although self-defense did not have a central role in its doctrines and frameworks.

When the UN was founded in 1945, the right to self-defense and its definition received a very significant place in the UN Charter (Article 51).[11] This happened because self-defense proved to be crucial in contemporary conflicts. As a result, the UN recognised the inherent right to self-defense within the Charter framework, while also maintaining regulations and boundaries, such as the factors of necessity, proportionality and timing. Since then, the term and its limits have been put to the test many times. From the Cold War to the aftermath of the

[8] Diplomacy and Law. (2024). *Self-defense in international law*. https://www.diplomacyandlaw.com/post/self-defense-in-international-law

[9] Diplomacy and Law. (2024). *Self-defense in international law*. https://www.diplomacyandlaw.com/post/self-defense-in-international-law

[10] Diplomacy and Law. (2024). *Self-defense in international law*. https://www.diplomacyandlaw.com/post/self-defense-in-international-law

[11] United Nations, Office of Legal Affairs, Codification Division. (2016, August 23). *Chapter VII: Article 51—Charter of the United Nations—Repertory of Practice of United Nations Organs*. https://legal.un.org/repertory/art51.shtml

9/11 attacks and from the Yugoslav Wars to the Russian-Ukrainian War, the concept of self defense has totally changed the course of history.

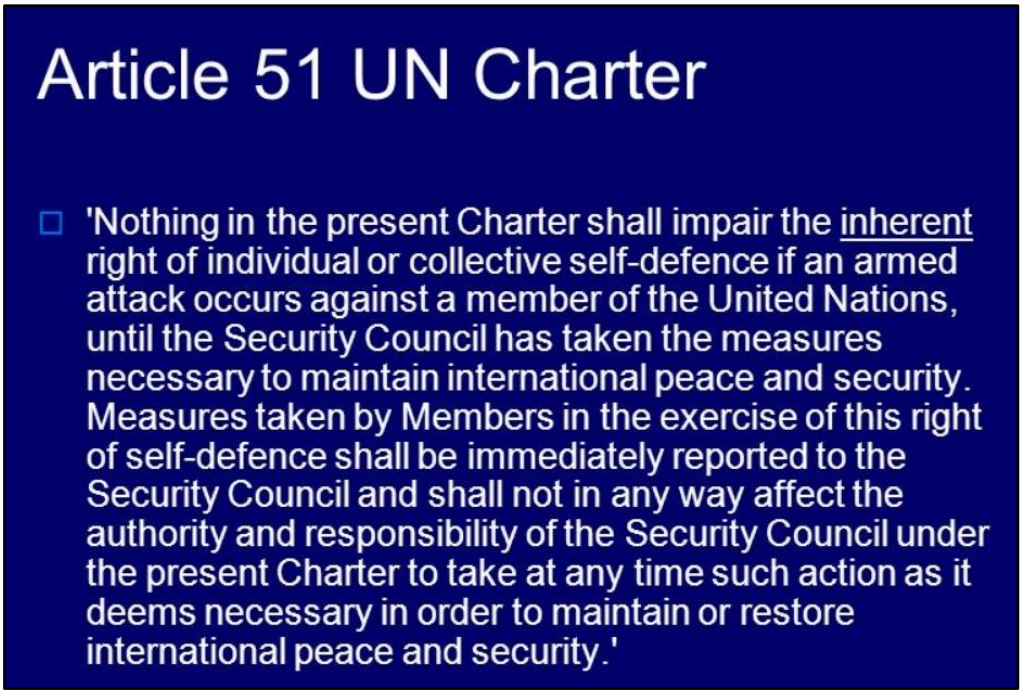


Figure 1: Article 51 of the UN Charter[12]

Current Situation

Since the introduction of Article 51, the UN Charter and customary international law regarding self-defense have coexisted in practice, which means that there have been many factors determining the limits of self-defense, with many not embodying the spirit of human rights and international law. This is mostly due to the fact that Article 51 does not establish a new framework. Instead, it mostly just preserves the status quo and the existing customary rules in relation to the limits and methods of self-defense, determined by the factors of means, timing and proportionality. Article 51 sets the groundwork for the role of UN mechanisms in cases of self-defense claims. For example, it is stated that all states who wish to exercise self-defence against an external factor shall report to the UN Security Council[13]. Uncertainty over the relationship between treaty and customary international law has been misused numerous times in the past and continues to create issues in international law regarding conflicts. As a

[12] RefLaw. (2023, October 13). *Israel and Hamas: Navigating the laws of war*. https://reflaw.org/israel-and-hamas-navigating-the-laws-of-war/

[13] United Nations. (n.d.). *Repertory of practice of United Nations organs: Article 51 (self-defence)*. https://legal.un.org/repertory/art51.shtml

result, clarifications on the limits of the term are needed in order to prevent further misinterpretation of the term. Some of the main criteria that have defined and should define self-defense are necessity of warfare (whether the use of force is necessary), proportionality and timing (whether the reaction is analogous to the attack and at a time that explains it) and, lastly, the means through which a state decides to defend itself.

Important Factors

Necessity of Warfare

A basic factor that determines whether an action in armed conflict can be defined as "self-defense" is the necessity of defensive force. This means that the use of force in response to an armed attack must be necessary to repel or prevent that attack.[14] Without this criterion, states would be able to proceed to acts of violence with zero reaction from the international community, while defining "self-defence" would be almost impossible. As a result, necessity of force must always be taken into consideration when we need to judge if an action is self-defence or not.

Proportionality & Timing

When referring to an armed reaction or conflict, proportionality and timing are basic factors. First of all, a military defense against a threat has to be proportionate, which means being analogous to the threat posed. It must not exceed what is necessary to meet the defensive objective; proportionality is not determined simply by matching troop numbers, weapons, or casualties. Furthermore, the armed reaction needs to be done at a time that explains its claim as self-defense. For instance, an operation launched after the threat has ended, or one launched against a merely speculative future threat, may not qualify as self-defense in international law.

Means of Self-Defense

The description of an operation as self-defense is also determined by the means it utilizes to repel the threat. Although under the description "self-defense" the use of violence is permitted by the UN and the international community,[15] this does not mean there are not any limits. As in every conflict, standard laws of warfare, as well as international humanitarian law must be respected. Violations of international humanitarian law are unlawful even if a

[14] Centre for International Relations and International Security. (n.d.). *The principles of self-defence*. https://www.ciris.info/articles/the-principles-of-self-defence/

[15] Centre for International Relations and International Security. (n.d.). *The principles of self-defence*. https://www.ciris.info/articles/the-principles-of-self-defence/

state has a valid right to resort to force in self-defense; the two legal questions must be assessed separately.

Case Studies

Russia-Ukraine War (2022-Present)

The war between Russia and Ukraine, which has been going on since February of 2022, has really challenged the limits of collective self-defense, as it is a conflict where both sides claim that their actions are self-defense. On one hand, Russia, the de facto aggressor, has supported in the UN since the beginning that the invasion of Ukraine was an act of self-defense against the "threat" of NATO's expansion towards the East.[16] However, Russia's claims do not establish a lawful justification for its invasion under Article 51.[17] On the other hand, Ukraine, the de facto defender, claims that its military operations seek to exercise its right of self-defense, aiming towards defense of the country's sovereignty and the safety of its people.[18] An important note regarding this claim is the fact that although Ukraine is actually the defender, its operations have expanded outside Ukrainian borders as well. Operations outside Ukrainian territory are not automatically excluded from self-defense, but each use of force must meet the applicable rules on necessity, proportionality, and civilian protection.[19]

The War in Gaza (2023-Present)

Israel's military operation in Gaza, besides being one of the most significant humanitarian crises of our era, is also an important case that demonstrates the limits of self defense. Following the attacks launched by Hamas on the 7th of October 2023,[20] Israel launched a

[16] Schmitt, M. N. (2022, February 28). *Russia's special military operation and the claimed right of self-defense*. Lieber Institute, West Point. https://lieber.westpoint.edu/russia-special-military-operation-claimed-right-self-defense/

[17] Schmitt, M. N. (2022, February 28). *Russia's special military operation and the claimed right of self-defense*. Lieber Institute, West Point. https://lieber.westpoint.edu/russia-special-military-operation-claimed-right-self-defense/

[18] Deutsche Welle. (2023, August 8). *Ukraine war: Right to self-defence*. https://www.dw.com/en/ukraine-war-right-to-self-defence/a-66420497

[19] Deutsche Welle. (2023, August 8). *Ukraine war: Right to self-defence*. https://www.dw.com/en/ukraine-war-right-to-self-defence/a-66420497

[20] Heller, K. J. (2025, June 12). *Can Israel still claim self-defence to justify its Gaza war? The Conversation*. https://theconversation.com/can-israel-still-claim-self-defence-to-justify-its-gaza-war-257822

military operation in the Gaza Strip, labeling it as self-defense.[21] In this case, although Hamas' attacks were actually launched first, thus making them the initial aggressor, the legality and limits of Israel's claim to self-defense remain disputed. Assessments of necessity and proportionality under the law of self-defense must be distinguished from assessments of civilian protection and targeting under international humanitarian law. Moreover, serious allegations of violations of international humanitarian law, including unlawful attacks on civilians, require separate legal assessment. The figures for deaths, injuries, and hostages must be attributed and dated before publication. This case shows how an initial claim to self-defense does not remove the legal limits on subsequent military operations.

US Invasion of Afghanistan (2001)

Following the terrorist 9/11 attacks in 2001, the US government launched a full-on operation against Afghanistan, aiming to stop Al-Qaeda, who was then sheltered there by the Taliban regime.[22] The US and the UK invoked self-defense under Article 51; such action did not require advance Security Council permission. This claim included the fact that this operation had as its main goal the prevention of future terrorist attacks by Al-Qaeda and would try to minimize civilian casualties. Scholars have debated for a long time on whether it was actually self-defense. The international community mostly accepted this claim, showing support to the US government. The Security Council adopted Resolution 1368 shortly after the attacks and subsequently authorised the International Security Assistance Force (ISAF), a distinct operation.[23] In conclusion, this case is important as it shows how an aggressive operation that has the form of an invasion may actually be perceived as self-defense.

Timeline of Events

Date	Description of Event

[21] Heller, K. J. (2025, June 12). *Can Israel still claim self-defence to justify its Gaza war? The Conversation*. https://theconversation.com/can-israel-still-claim-self-defence-to-justify-its-gaza-war-257822

[22] House of Commons Library. (2024). *The legal basis for the use of force: A guide* (Research Briefing SN05340). https://researchbriefings.files.parliament.uk/documents/SN05340/SN05340.pdf

[23] House of Commons Library. (2024). *The legal basis for the use of force: A guide* (Research Briefing SN05340). https://researchbriefings.files.parliament.uk/documents/SN05340/SN05340.pdf

29 December 1837	The Caroline Incident: a diplomatic crisis between the US and Great Britain, concerning a group of Canadian revolutionaries.
10 January 1920	The League of Nations is established in Geneva, Switzerland, setting the foundations for the UN and the UN Charter.
26 June 1945	Article 51 of the UN Charter is adopted, being the recognition of the inherent right of self-defense within the UN Charter.
14 December 1974	United Nations General Assembly Resolution 3314 is adopted by the General Assembly.
12 September 2001	United Nations Security Council Resolution 1368 is adopted by the Security Council.
7 October 2001	The US military launches an operation against Al-Qaeda in Afghanistan, showing the gravity of this term.
24 February 2022	Russia invades Ukraine, provoking many reactions and diplomatic actions.
2 March 2022	United Nations General Assembly Resolution ES-11/1 is adopted by the General Assembly, as a reaction to Russia's invasion of Ukraine.
7 October 2023	Hamas launches an attack against Israel, introducing new challenges for the term and provoking many different reactions in the international community.

Major Actors Involved

North Atlantic Treaty Organization (NATO)

NATO is by definition a defensive alliance. Article 5 of its Charter states that an attack to one member equals an attack to all. The legality of NATO military operations must be assessed individually under international law. However, NATO is not a source of international law, but it is a significant source of power that affects it, as it has a direct effect on geopolitics. Although its role in international relations has not been so bold in recent conflicts, it still has a significant effect, influencing the actions of many states in Europe and North America.

Russian Federation

As a state, Russia recognizes the importance of self-defense in international law. However, in practice, it has abused this term many times. Especially in recent situations such as the annexation of Crimea (2014) and the invasion of Ukraine (2022),[24] Russia has used self-defense as a pretext for many military operations, often being criticized by the international community, as most of its claims are not accepted by scholars of international law.

UN Security Council (UNSC)

The UN Security Council (UNSC) has an obligation and responsibility to protect international law and ensure peace and security. According to Article 51, all actions by states labeled as self-defense must be reported to it, but such reporting does not make the Council the source of authorization for every act of self-defense.[25] However, a factor that affects its work is the existence of the veto power exercised by the five permanent members, which often creates obstacles, as geopolitical interests may function as obstacles in the process of finding solutions according to International Law. This has not made any significant changes in this topic, however it has led to the UNSC being less active and vocal due to the geopolitical interests of permanent UNSC members.

[24] Schmitt, M. N. (2022, February 28). *Russia's special military operation and the claimed right of self-defense*. Lieber Institute, West Point. https://lieber.westpoint.edu/russia-special-military-operation-claimed-right-self-defense/

[25] United Nations, Office of Legal Affairs, Codification Division. (2016, August 23). *Chapter VII: Article 51—Charter of the United Nations—Repertory of Practice of United Nations Organs*. https://legal.un.org/repertory/art51.shtml

United States (US)

The United States has played a major role in the interpretation of the term "self-defense", often stretching its meaning and expressing controversial interpretations of international law on this topic. To be more specific, the US has endorsed over the years the doctrine of anticipatory self-defense, a stance that is not that widely accepted by the international community. The US has also highlighted numerous times how self-defense refers both to defense against states, as well as other entities (e.g. terrorist organizations)[26].

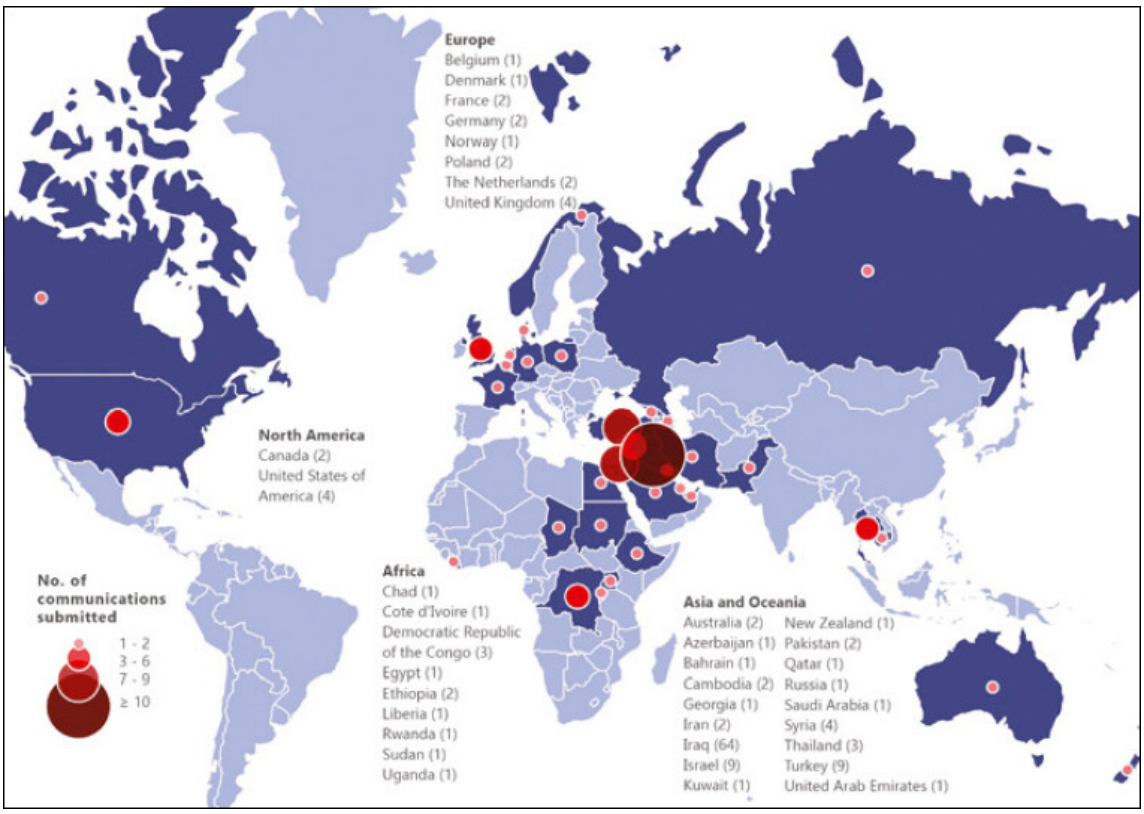


Figure 2: States submitting Article 51 communications, 2000–2018[27]

[26] Greenwood, C. (2003). International law and the pre-emptive use of force. *San Diego International Law Journal, 4*(1), 7–36. https://www.jstor.org/stable/45067909

[27]Goldthorpe, C. (2024). The imbalanced geography of the law on use of force in self-defence. *International Community Law Review, 26*(5), 434–475. https://doi.org/10.1163/18719732-bja10124

UN Documents and International Agreements

UN Charter (Article 51)

Introduced in 1945 as a part of the UN Charter, Article 51 is considered by many as the most significant document of international law regarding self-defense. This article establishes the unalienable right of every state to use force to defend itself, while setting some boundaries and a code of conduct. For instance, this article states that states taking measures in self-defense must immediately report those measures to the UN Security Council. However, it is not exactly perfect, as it leaves a blank space that can be misinterpreted and abused by some. It does not mention the limits of self-defense in a precise manner. As a result, it is possible for states to interpret it according to their interests and proceed to hurtful actions.

United Nations General Assembly Resolution 3314 (1974)

Resolution 3314, introduced in 1974 by the UN General Assembly,[28] is a legal text of great importance. Its main topic is the definition of aggression in international law. Specifically, this resolution defines acts of aggression, including invasion, annexation by force, and certain blockades, and describes a war of aggression as a crime against international peace.[29] The definition also addresses the sending of armed bands or groups whose acts reach the gravity of an armed attack. The definition of aggression is very important, as it directly affects what is considered self-defense and what is not.

United Nations Security Council Resolution 1368 (2001)

Following the events of 9/11 in 2001, the UNSC passed Resolution 1368.[30] This document, apart from condemning the terrorist attacks of 9/11, also reaffirms the inherent right of every state to defend itself against threats, doing so in a more contemporary situation.[31] However, this right does not allow states to act without legal limits, thus not stopping events such as the US invasion of Afghanistan.

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[28] United Nations. (n.d.). *Draft articles on diplomatic asylum*. United Nations Audiovisual Library of International Law. https://legal.un.org/avl/ha/da/da.html

[29] United Nations. (n.d.). *Draft articles on diplomatic asylum*. United Nations Audiovisual Library of International Law. https://legal.un.org/avl/ha/da/da.html

[30] United Nations Security Council. (2001, September 12). *Resolution 1368 (2001)*. https://unscr.com/en/resolutions/doc/1368/

[31] United Nations Security Council. (2001, September 12). *Resolution 1368 (2001)*. https://unscr.com/en/resolutions/doc/1368/

United Nations General Assembly Resolution ES-11/1 (2022)[32]

This resolution was introduced after the launch of Russia's invasion of Ukraine in 2022. Specifically, it condemns both Russia's armed attack and Belarus' involvement in the conflict.[33] By doing so, the General Assembly rejected Russia's claim that this operation was an act of self-defense, strengthening the definition of the term. However, it did not re-establish the limits of self-defense, thus not combatting this issue effectively or preventing something similar from happening in the future.

Possible Solutions

Clarifying Article 51 of the UN Charter

Although the General Assembly cannot amend the UN Charter on its own or issue binding judicial interpretations of it, it can clarify some terms through the Member States' opinions. A very helpful solution would be to clarify factors or criteria closely linked to proportionality, military necessity, and timing, in order to make the term less vague and set some boundaries or guidelines for future cases. In the future, this would help the international community decide whether an operation is self-defense or not. That way, without actually changing the UN framework, this would create a guide for future situations. Moreover, even though such a resolution would be non-binding it would help establish some standards in the international community.

Establishing a separate UN working group on the issue

A feasible solution that would help limit this problem would be to establish a separate working group under the General Assembly's Sixth Committee, tasked with clarifying key legal concepts relevant to collective self-defense, developing interpretative guidelines in similar cases, examining how states report measures taken in self-defense to the Security Council, and facilitating dialogue among states. There is no permanent UN body exclusively tasked with all of the above, even though this topic is of major importance. Some difficulties this would have is that of resources needed for a new UN body and the fact that such a factor would face challenges by states that benefit from this problem.

[32] United Nations General Assembly. (2022). *Aggression against Ukraine* (Resolution ES-11/1). United Nations Digital Library

[33] United Nations General Assembly. (2022, March 2). *Aggression against Ukraine* (Resolution A/RES/ES-11/1). United Nations. https://docs.un.org/A/RES/ES-11/1

Strengthening Peaceful Conflict Resolution Mechanisms in the UN

A complementary solution to this issue would be to strengthen peaceful conflict resolution mechanisms and promote dialogue, in order to limit armed conflicts and claims of self-defense. For instance, the GA could encourage the greater use of measures such as negotiation, dialogue, and judicial settlements through the ICJ, provide legal guidance and support to states who wish to avoid conflict and, finally, promote transparency in the international community. This is not a direct and independent solution to the problem, but could prove helpful in limiting this issue.

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